SUPREME COURT OF INDIA

APPELLATE JURISDICTION · THREE-JUDGE BENCH

Writ Petition (Civil) No. 1031 of 2019 **CNR: SCIN010010312019**

Date: 10 January, 2020 *Citation: (2020) 3 SCC 637*

CORAM: Hon'ble N.V. Ramana, R. Subhash Reddy, B.R. Gavai, JJ.

Petitioner: Anuradha Bhasin (Executive Editor, Kashmir Times)

- VERSUS -

Respondent: Union of India & UT of Jammu and Kashmir

DOMAIN: FREEDOM OF SPEECH & TELECOMMUNICATIONS LAW **STATUS: Good Law (Binding 3-Judge Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Freedom of speech and expression through the internet is an integral part of Article 19(1)(a). Suspension of internet services cannot be indefinite; it must adhere to the principle of proportionality and must be published and subjected to periodic review.

STATUTES APPLIED: Article 19(1)(a), Article 19(1)(g), Section 144 CrPC, Suspension Rules, 2017

DISPOSITION: PERIODIC REVIEW OF INTERNET SUSPENSION ORDERS MANDATED

EXECUTIVE RATIO SUMMARY:

Three-judge bench declared that freedom of speech and expression and freedom to practice trade or profession through the medium of the internet is a fundamental right under Article 19(1)(a) and 19(1)(g). Indefinite internet suspension orders are illegal.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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